

Tentative Rulings for August 4, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2301515	NEW GENERATION INVESTMENTS, LLC VS PALM 10 ASSOCIATES, LLC	HEARING ON MOTION TO TAX COSTS BY SUSAN HARVEY, DESERT PACIFIC PROPERTIES, INC.

Tentative Ruling: Granted.

No opposition filed.

All costs are stricken as to Defendants Susan Harvey and Desert Pacific Properties, Inc.

Moving party to provide notice pursuant to CCP 1019.5.

On February 24, 2026, a jury returned verdicts in favor of defendant and cross defendants.

On April 10, 2026, Plaintiff filed a Memorandum of Costs ("MOC") seeking \$43,124.11.

Defendants Susan Harvey and Desert Pacific Properties, Inc. move to reduce costs to \$0.00 since Plaintiff was not the prevailing party.

Motion to Tax Costs

Under C.C.P. §1032(b), unless otherwise provided, "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." C.C.P. § 1033.5(a) contains a list of items specifically allowed as recoverable costs, and § 1033.5(b) contains a list of items that "are not allowable as costs, except when expressly authorized by law." An item neither specifically allowable under subdivision (a) nor prohibited under subdivision (b) may be allowed or denied in the discretion of the court if certain requirements are satisfied. (C.C.P. § 1033.5(c)(4).) In particular, the item "shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "shall be reasonable in amount." (C.C.P. § 1033.5(c)(2) and (3).) Objection to any item or items on the cost memorandum may be made by filing and serving a noticed motion to tax cost. (C.C.P. § 1034; CRC 3.1700 (b)(1).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774.) "A verified memorandum of costs is prima facie evidence of their propriety," and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ladas, supra*, 19 Cal.App.4th at 774.)

Here, Plaintiff was not the prevailing party on the operative complaint. It appears that Plaintiff may have submitted the MOC as the Cross Defendant on Palm 10 Associates cross complaint. However, since the moving Defendants were not parties to the cross complaint, the court only needs to address whether Plaintiff was a prevailing party on the operative complaint, which they were not. GRANTED.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2401179	COHEN VS HUDSON INSURANCE COMPANY, A DELAWARE CORPORATION	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF KAREN LYNN COHEN

Tentative Ruling: Denied.

Court to provide notice.

Moving Defendant file their instant motion on June 5, 2026 seeking judgment on the pleadings as to 8th cause of action in the operative complaint filed March 1, 2024.

Plaintiff did not file an opposition, but did previously oppose advancing the instant motion based on the merits.

Judgment on Pleadings

A motion for judgment on the pleadings “may only be made on one of the following grounds: If the moving party is a plaintiff, that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.” (Code Civ. Proc., § 438, subd. (c)(1)(A).) Like a demurrer, a motion for judgment on the pleadings attacks defects disclosed on the face of the pleadings or by matters that may be judicially noticed. (*Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1173-1174.) A motion for judgment on the pleadings is similar to a demurrer in most respects. (Ibid.) Except as provided in the statute governing motions for judgment on the pleadings, the rules governing demurrers apply. (Ibid.) “There are some differences between a motion for judgment on the pleadings and a demurrer. Unlike a demurrer, a plaintiff may move for judgment on the pleadings on the ground ‘that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint.’ Where a plaintiff brings such a motion, we assume the defendant could have proven all of the factual allegations in its answer.” (Id. at p.1174, internal citations omitted.) “In evaluating the sufficiency of the challenged pleading, we accept all material facts pleaded and those that arise by reasonable implication, but not conclusions of fact or law. Finally, a party moving for judgment on the pleadings must make it no later than 30 days prior to the initial date set for trial (Code Civ. Proc., § 438(e).)

Here, initial trial was originally set for April 24, 2026. The instant motion was filed on June 5, 2026. The motion is untimely.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503849	AGUILAR VS CERVANTES	MOTION FOR INTERLOCUTORY JUDGMENT OF PARTITION AND APPOINTMENT OF PARTITION REFEREE

Tentative Ruling: Denied without prejudice.

No opposition filed.

Moving party has not submitted a proposed referee on the matter.

Court to provide notice.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2601066	DOUBLE EYE, LLC., A CALIFORNIA LIMITED LIABILITY COMPANY VS GOTTLIEB	DEMURRER ON 1ST AMENDED COMPLAINT OF DOUBLE EYE, LLC, BY WAYNE A. GOTTLIEB, GOTTLIEB INCOME TAX SERVICES, A SOLE PROPRIETORSHIP

Tentative Ruling: Sustained and overruled in part.

Sustained with leave to amend as to 1st cause of action. Plaintiff granted leave to file a 2nd Amended Complaint within 10 days of this order becoming final. If a 2nd Amended Complaint is not filed within 10 days, moving defendant is ordered to file their answer to the remaining causes of action in the 1st Amended Complaint within 20 days of this order becoming final.

Moving defendant to provide notice pursuant to CCP 1019.5.

This is a fraud action filed February 3, 2026 by Plaintiff Double Eye, LLC against Defendants Wayne Gottlieb and Gottlieb Income Tax Services alleging 8 causes of action for 1) fraud/intentional misrepresentation, 2) constructive fraud, 3) breach of fiduciary duty, 4) conversion, 5) violation of Penal Code section 496, 6) common count, 7) restitution/unjust enrichment, and 8) accounting. Thereafter on May 12, 2026, Double Eye filed as a matter of right a First Amended Complaint realleging the same 8 causes of action.

Defendants Gottlieb demur and move to strike portions of the FAC.

Defendants Gottlieb demur to the 1st, 2nd, 4th, and 5th causes of action on the grounds that the FAC fails to set forth facts sufficient to constitute a cause of action against them.

In opposition, Double Eye asserts that FAC alleges that Defendants exercised exclusive control over Plaintiff's finances and accounting records, caused hundreds of thousands of dollars to be transferred to themselves, concealed Plaintiff's financial information, refused to provide an accounting, and thereby prevented Plaintiff from determining the full extent of the misappropriation. Those allegations are more than sufficient to state each challenged cause of action. At the pleading stage, Plaintiff is required only to allege facts constituting the causes of action, not to prove them. Moreover, under the facts of this case, Defendants should not be allowed to rely on and benefit from their own wrongful concealment of Plaintiff's accounting records as the basis for arguing Plaintiff lacks sufficient specificity at the pleading stage.

In reply, Gottliebs asserts that Double Eye misconstrues the pleading standard applicable to the four causes of action. The Gottliebs assert that even if Plaintiffs are not in possession of all of the facts it still bears the burden of pleading specific facts to establish the causes of action. Plaintiff's allegations are of only the ultimate facts with vague generalities to support those facts. This is insufficient when alleging a cause of action premised on fraud. From Plaintiff's own allegations, Plaintiff has specific information regarding how it arrived at its allegations premised only on information and belief, that the Defendants acted improperly, which Plaintiff has failed to allege in the FAC.

Demurrer

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School*

Dist. (2012) 53 Cal.4th 861, 872.) Generally a plaintiff need only plead facts necessary “to acquaint a defendant with the nature, source and extent of his claims.” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court’s task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) “The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff.” (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st Cause of Action - Intentional Misrepresentation

The elements of intentional misrepresentation are: (a) misrepresentation, (b) knowledge of falsity (or scienter), (c) intent to defraud, (d) justifiable reliance, and (e) resulting damage. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.) Fraud must be pled with specificity; the plaintiffs must allege facts which “show how, when, where, to whom, and by what means the representations were tendered.” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73, quoting *Hills Trans. Co. v. Southwest* (1968) 266 Cal.App.2d 702, 707.)

Here, the FAC fails to state sufficient facts to constitute a cause of action for intentional misrepresentation. Specifically, the FAC, page 6, paragraphs 24-30 do not meet the heightened pleading standard for fraud via intentional misrepresentation.

2nd Cause of Action for Constructive Fraud

Civil Code §1573 provides that constructive fraud exists “[i]n any breach of duty which, without an actually fraudulent intent, gains an advantage to the person in fault, or any one claiming under him, by misleading another to his prejudice, or to the prejudice of any one claiming under him.” “Constructive fraud, like actual fraud, must be pleaded with specificity.” (*Schauer v. Mandarin Gems of Cal., Inc.* (2005) 125 Cal.App.4th 949, 961.) Here, the FAC sufficiently states facts to state a claim for constructive fraud through failure to maintain accurate books and refusing to return financial records. **OVERRULED.**

3rd Cause of Action for Conversion

Conversion is a strict liability tort, whose elements are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of

property rights, and (3) damages. (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066.) “Conversion” consists of any act of dominion wrongfully exercised over personal property of another inconsistent with, or in denial of, his rights thereto. (*Zaslow v. Kroenert* (1946) 29 Cal.2d 541.) Here, the FAC sufficiently states a cause of action for conversion for the same reasons as sufficiently pleading constructive fraud. **OVERRULED.**

4th Cause of Action for Violation of Penal Code Section 496

Section 496 extends to property “that has been obtained in any manner constituting theft.” Penal Code § 484 describes acts constituting theft, and states, in part: “Every person who shall feloniously steal, take, carry, lead, or drive away the personal property of another, or who shall fraudulently appropriate property which has been entrusted to him or her, or who shall knowingly and designedly, by any false or fraudulent representation or pretense, defraud any other person of money, labor or real or personal property, or who causes or procures others to report falsely of his or her wealth or mercantile character and by thus imposing upon any person, obtains credit and thereby fraudulently gets or obtains possession of money, or property or obtains the labor or service of another, is guilty of theft.” (Penal Code § 484(a).) Thus, §484 defines theft to include theft by false pretenses. (*Bell v. Feibush* (2013) 212 Cal.App.4th 1041, 1048 (defendant used false pretenses to induce a loan of \$202,500 and judgment in civil court was issued against him for breach of contract, fraud and treble damages pursuant to § 496(c).) Here, the FAC sufficiently states a cause of action for a violation of Penal Code section 496 in the exact amount of \$639,940.00. **OVERRULED.**

5.

CASE #	CASE NAME	HEARING NAME
CVPS2601066	DOUBLE EYE, LLC., A CALIFORNIA LIMITED LIABILITY COMPANY VS GOTTLIEB	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF DOUBLE EYE, LLC, BY WAYNE A. GOTTLIEB, GOTTLIEB INCOME TAX SERVICES, A SOLE PROPRIETORSHIP

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is a fraud action filed February 3, 2026 by Plaintiff Double Eye, LLC against Defendants Wayne Gottlieb and Gottlieb Income Tax Services alleging 8 causes of action for 1) fraud/intentional misrepresentation, 2) constructive fraud, 3) breach of fiduciary duty, 4) conversion, 5) violation of Penal Code section 496, 6) common count, 7) restitution/unjust enrichment, and 8) accounting. Thereafter on May 12, 2026, Double Eye filed as a matter of right a First Amended Complaint realleging the same 8 causes of action.

Defendants move to strike the following portions of the FAC:

1. Page 6, lines 26-27: “30. GOTTLIEB acted with oppression, fraud, and malice, entitling Plaintiff to punitive damages pursuant to Civil Code section 3294;”
2. Page 9, line 14, Prayer, ¶2 “for treble damages pursuant to Penal Code section 496;”
3. Page 9, lines 15, Prayer ¶3: “for Punitive and exemplary damages.”
4. Page 9, lines 16, Prayer ¶4: “[...] restitution [...]”
5. Page 9, line 18, Prayer ¶6: “[...] attorneys fees [...]”

Motion to Strike

C.C.P. §436(a) provides that a court may “[s]trike out any irrelevant, false, or improper matter inserted in any pleading.” In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true. (*Clauson v. Sup. Ct. (Pedus Services, Inc.)* (1998) 67 Cal.App.4th 1253, 1255.) The same liberal policy regarding amendment of pleadings applies as on sustaining demurrers. Therefore, as long as the defect is correctible, an amended pleading will usually be allowed. (C.C.P. §576; *Grieves v. Sup. Ct. (Fox)* (1984) 157 Cal.App.3d 159, 168; *Price v. Dames & Moore* (2001) 92 Cal.App.4th 355, 360.)

Irrelevant matter includes allegations that are not essential to the claim; “neither pertinent to nor supported by an otherwise sufficient claim”; or requesting relief not supported by the allegation of the complaint.” (C.C.P. §431.10(b).) “False” matters must appear on the face of the pleadings or from matters judicially noticed. (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 21.) Improper matters include legal conclusion, conclusory allegations unsupported by facts and improper demands and substantive defects in a portion of a claim.

Request 1 - This relates to the 1st cause of action, which was sustained, with leave to amend; therefore, this request is MOOT.

Requests 2, 4 and 5 - These requests are supported by the 5th cause of action for a violation of Penal Code 496. DENIED.

Request 3 - This is a request for punitive damages. A motion to strike lies where the facts alleged in a pleading do not rise to the level of “malice, fraud or oppression” required to support a punitive damages claim. (*Turman vs. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.) C.C. §3294 provides that exemplary damages are allowable where the defendant is guilty of malice, oppression or fraud. “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (C.C. §3294(a)(1).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (C.C. §3294(a)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (C.C. §3294(a)(3).) Here, the FAC sufficiently states a basis for fraud sufficient to support a prayer for relief for punitive or exemplary damages as to 2nd cause of action. DENIED.